

NON-DISCLOSURE AGREEMENT

THIS NON-DISCLOSURE AGREEMENT ("the Agreement") dated this _____ day of _____, _____

BETWEEN:

_____ of _____ and
_____ of _____
(individually and collectively the "Partners")

- AND -

_____ of _____
(the "Candidate Partner")

BACKGROUND:

- A. The Candidate Partner wishes to enter into negotiations with the Partners for admission as a new partner of Depth X Ltd. (the "Partnership").
- B. Pursuant to negotiations for admission to the Partnership (the "Permitted Purpose"), the Partners intend to provide the Candidate Partner with certain confidential information (the "Confidential Information").

IN CONSIDERATION OF and as a condition of the Partners providing the Confidential Information to the Candidate Partner in addition to other valuable consideration, the receipt and sufficiency of which consideration is hereby acknowledged, the parties to this Agreement agree as follows:

Confidential Information

- 1. All written and oral information and materials disclosed or provided by the Partners to the Candidate Partner under this Agreement constitute Confidential Information regardless of whether such information was provided before or after the date of this Agreement or how it was provided to the Candidate Partner.
- 2. 'Confidential Information' means all data and information relating to the Partners and the Partnership, including but not limited to, the following:

- a. 'Business Operations' which includes internal personnel and financial information of the Partners, vendor names and other vendor information (including vendor characteristics, services and agreements), purchasing and internal cost information, internal services and operational manuals, external business contacts including those stored on social media accounts or other similar platforms or databases operated by the Partners, and the manner and methods of conducting the Partners's business;
- b. 'Customer Information' which includes names of customers of the Partners, their representatives, all customer contact information, contracts and their contents and parties, customer services, data provided by customers and the type, quantity and specifications of products and services purchased, leased, licensed or received by customers of the Partners;
- c. 'Intellectual Property' which includes information relating to the Partners's proprietary rights prior to any public disclosure of such information, including but not limited to the nature of the proprietary rights, production data, technical and engineering data, technical concepts, test data and test results, simulation results, the status and details of research and development of products and services, and information regarding acquiring, protecting, enforcing and licensing proprietary rights (including patents, copyrights and trade secrets);
- d. 'Service Information' which includes all data and information relating to the services provided by the Partners, including but not limited to, plans, schedules, manpower, inspection, and training information;
- e. 'Product Information' which includes all specifications for products of the Partners as well as work product resulting from or related to work or projects of the Partners, of any type or form in any stage of actual or anticipated research and development;
- f. 'Production Processes' which includes processes used in the creation, production and manufacturing of the work product of the Partners, including but not limited to, formulas, patterns, moulds, models, methods, techniques, specifications, processes, procedures, equipment, devices, programs, and designs;
- g. 'Accounting Information' which includes, without limitation, all financial statements, annual reports, balance sheets, company asset information, company liability information, revenue and expense reporting, profit and loss reporting, cash flow reporting, accounts receivable, accounts payable, inventory reporting, purchasing information and payroll information of the Partners;

- h. 'Marketing and Development Information' which includes marketing and development plans of the Partners, price and cost data, price and fee amounts, pricing and billing policies, quoting procedures, marketing techniques and methods of obtaining business, forecasts and forecast assumptions and volumes, and future plans and potential strategies of the Partners which have been or are being discussed;
- i. 'Computer Technology' which includes all scientific and technical information or material of the Partners, pertaining to any machine, appliance or process, including but not limited to, specifications, proposals, models, designs, formulas, test results and reports, analyses, simulation results, tables of operating conditions, materials, components, industrial skills, operating and testing procedures, shop practices, know-how and show-how;
- j. 'Proprietary Computer Code' which includes all sets of statements, instructions or programs of the Partners, whether in human readable or machine readable form, that are expressed, fixed, embodied or stored in any manner and that can be used directly or indirectly in a computer ('Computer Programs'); any report format, design or drawing created or produced by such Computer Programs; and all documentation, design specifications and charts, and operating procedures which support the Computer Programs; and
- k. Confidential Information will also include any information that has been disclosed by a third party to the Partners and is protected by a non-disclosure agreement entered into between the third party and the Partners.

3. Confidential Information will not include the following information:

- a. Information that is generally known in the industry of the Partners;
- b. Information that is now or subsequently becomes generally available to the public through no wrongful act of the Candidate Partner;
- c. Information rightly in the possession of the Candidate Partner prior to the disclosure to the Candidate Partner by the Partners;
- d. Information that is independently created by the Candidate Partner without direct or indirect use of the Confidential Information; or
- e. Information that the Candidate Partner rightfully obtains from a third party who has the right to transfer or disclose it.

Obligations of Non-Disclosure

4. Except as otherwise provided in this Agreement, the Candidate Partner must not disclose the Confidential Information.
5. Except as otherwise provided in this Agreement, the Confidential Information will remain the exclusive property of the Partners and will only be used by the Candidate Partner for the Permitted Purpose. The Candidate Partner will not use the Confidential Information for any purpose that might be directly or indirectly detrimental to the Partners or any associated affiliates or subsidiaries.
6. The obligations to ensure and prevent the disclosure of the Confidential Information imposed on the Candidate Partner in this Agreement and any obligations to provide notice under this Agreement will survive the expiration or termination, as the case may be, of this Agreement and those obligations will last indefinitely.
7. The Candidate Partner may disclose any of the Confidential Information:
 - a. to such employees, agents, representatives and advisors of the Candidate Partner that have a reasonable need to know for the Permitted Purpose provided that:
 - i. the Candidate Partner has informed such personnel of the confidential nature of the Confidential Information;
 - ii. such personnel agree to be legally bound to the same burdens of non-disclosure and non-use as the Candidate Partner;
 - iii. the Candidate Partner agrees to take all necessary steps to ensure that the terms of this Agreement are not violated by such personnel; and
 - iv. the Candidate Partner agrees to be responsible for and indemnify the Partners for any breach of this Agreement by their personnel.
 - b. to a third party where the Partners has consented in writing to such disclosure; and
 - c. to the extent required by law or by the request or requirement of a court of law, a regulatory body, or an administrative tribunal.
8. The Candidate Partner agrees to retain all Confidential Information at their usual place of business and to store all Confidential Information separate from other information and documents held in the same location. Further, the Confidential Information may not be used,

reproduced, transformed, or stored on a computer or device that is accessible to persons to whom disclosure may not be made, as set out in this Agreement.

Ownership and Title

9. Nothing contained in this Agreement will grant to or create in the Candidate Partner, either expressly or impliedly, any right, title, interest or license in or to the intellectual property of the Partners.

Remedies

10. The Candidate Partner agrees and acknowledges that the Confidential Information is of a proprietary and confidential nature and that any disclosure of the Confidential Information to a third party in breach of this Agreement cannot be reasonably or adequately compensated for in money damages and would cause irreparable injury to the Partners. Accordingly, the Candidate Partner agrees that the Partners is entitled to, in addition to all other rights and remedies available to them at law or in equity, an injunction restraining the Candidate Partner, any of their personnel, and any agents of the Candidate Partner, from directly or indirectly committing or engaging in any act restricted by this Agreement in relation to the Confidential Information.

Return of Confidential Information

11. The Partners may at any time request the return of all Confidential Information from the Candidate Partner. Upon the request of the Partners, or in the event that the Candidate Partner ceases to require use of the Confidential Information, or upon the expiration or termination of this Agreement, the Candidate Partner will:
 - a. return all Confidential Information to the Partners;
 - b. provide a certificate to the Partners to the effect that the Candidate Partner has returned all Confidential Information to the Partners.

Notices

12. In the event that the Candidate Partner is required in a civil, criminal or regulatory proceeding to disclose any part of the Confidential Information, the Candidate Partner will give to the Partners prompt written notice of such request so the Partners may seek an appropriate remedy or alternatively to waive the Candidate Partner's compliance with the provisions of this Agreement in regards to the request.
13. If the Candidate Partner loses or makes unauthorised disclosure of any of the Confidential Information, the Candidate Partner will immediately notify the Partners and take all reasonable steps necessary to retrieve the lost or improperly disclosed Confidential

Information.

14. Any notices or delivery required in this Agreement will be deemed completed when hand-delivered, delivered by agent, or seven days after being placed in the post, postage prepaid, to the parties at the addresses contained in this Agreement or as the parties may later designate in writing.
15. The addresses for any notice to be delivered to any of the parties to this Agreement are as follows:
 - a. Name: _____
Address: _____
 - b. Name: _____
Address: _____
 - c. Name: _____
Address: _____

Representations

16. In providing the Confidential Information, the Partners makes no representations, either expressly or impliedly as to its adequacy, sufficiency, completeness, correctness or its lack of defect of any kind, including any patent or trade mark infringement that may result from the use of such information.

Termination

17. Either party may terminate this Agreement by providing written notice to the other party. Except as otherwise provided in this Agreement, all rights and obligations under this Agreement will terminate at that time.

Assignment

18. Except where a party has changed its corporate name or merged with another corporation, this Agreement may not be assigned or otherwise transferred by either party in whole or part without the prior written consent of the other party to this Agreement.

Amendments

19. This Agreement may only be amended or modified by a written instrument executed by both the Partners and the Candidate Partner.

Governing Law

20. This Agreement will be construed in accordance with and governed by the laws of England.

General Provisions

21. Time is of the essence in this Agreement.
22. This Agreement may be executed in counterpart.
23. Headings are inserted for the convenience of the parties only and are not to be considered when interpreting this Agreement. Words in the singular mean and include the plural and vice versa. Words in the masculine mean and include the feminine and vice versa.
24. The clauses, paragraphs, and subparagraphs contained in this Agreement are intended to be read and construed independently of each other. If any part of this Agreement is held to be invalid, this invalidity will not affect the operation of any other part of this Agreement.
25. The Candidate Partner is liable for all costs, expenses and expenditures including, and without limitation, the complete legal costs incurred by the Partners in enforcing this Agreement as a result of any default of this Agreement by the Candidate Partner.
26. The Partners and the Candidate Partner acknowledge that this Agreement is reasonable, valid and enforceable. However, if a court of competent jurisdiction finds any of the provisions of this Agreement to be too broad to be enforceable, it is the intention of the Partners and the Candidate Partner that such provision be reduced in scope by the court only to the extent deemed necessary by that court to render the provision reasonable and enforceable, bearing in mind that it is the intention of the Candidate Partner to give the Partners the broadest possible protection against disclosure of the Confidential Information.
27. No failure or delay by the Partners in exercising any power, right or privilege provided in this Agreement will operate as a waiver, nor will any single or partial exercise of such rights, powers or privileges preclude any further exercise of them or the exercise of any other right, power or privilege provided in this Agreement.
28. This Agreement will inure to the benefit of and be binding upon the respective heirs, executors, administrators, successors and assigns, as the case may be, of the Partners and the Candidate Partner.

29. This Agreement constitutes the entire agreement between the parties and there are no further items or provisions, either oral or otherwise.

IN WITNESS WHEREOF _____, _____ and
_____ have duly affixed their signatures under hand and seal on this _____
day of _____, _____.

_____(Partners)

Per: _____
(Seal)

_____(Partners)

Per: _____
(Seal)

_____(Candidate
Partner)

Per: _____
(Seal)